PETITION - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

IN THE ..... COURT
(The county criminal, circuit or general sessions court having jurisdiction in the previous action - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:
.....

FREE EXPUNCTION OF A NON-CONVICTION RECORD BY PETITION, T.C.A. Sec. 40-32-106(A)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-106(a)(2); T.C.A. Sec. 40-32-102; T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-102(e); T.C.A. Sec. 40-32-110; T.C.A. Sec. 40-6-204(b) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Created by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608 effective 2026-03-25. All public records of a person charged with a misdemeanour or felony must, upon petition by that person to the court having jurisdiction in the previous action, be removed and destroyed without cost to the person where the charge was dismissed other than by diversion completion, a no true bill was returned, the person was arrested and released without being charged, a nolle prosequi was entered, a verdict of not guilty was returned, or on the section's further grounds including qualifying implied-consent dismissals, abatement by death, mistaken identity and racial-justice-protest convictions. Subsection (a)(2) extends the same no-cost treatment to a successfully defended order of protection and to expired bonds under Sec. 38-3-109. There is no waiting period. The TBI certificate under Sec. 40-32-102(c) is not required for a Sec. 40-32-106 expunction unless the expunction resulted from successful completion of pretrial or judicial diversion. Under Sec. 40-32-110 expunction restores the person, in contemplation of law, to the status occupied before arrest, indictment, information, trial and conviction, and under Sec. 40-32-102(e) the expunged records are confidential and unlawful release is a Class A misdemeanour.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - originating court] Which court handled the case, and in which county? A separate filing is needed in

each county where you have a case.
.....
.....

[C2 - docket number] What is the docket or case number?
.....
.....

[C3 - offence and disposition] What was the charge, and exactly how did the case end?
.....
.....

[C4 - disposition date] On what date did the case end?
.....
.....

[C5 - state control number] What is the state control number on your TBI criminal history? The expunction order cannot be completed without it.
.....
.....

[C6 - other convictions] List every other conviction you have anywhere, including federal and out-of-state.
.....
.....

[C7 - citizenship or clearance] Are you asking about this because of immigration, federal employment or a security clearance? Tennessee expunction does not reach federal records.
.....
.....

[C8 - disposition ground] Which of these describes how the case ended - dismissed, no true bill returned by the grand jury, arrested and released without being charged, nolle prosequi, or found not guilty?
.....
.....

[C9 - came through diversion] Was the case dismissed because you completed a diversion programme? If so this is a different, non-free route.
.....
.....

[C10 - any count convicted] Did any count in the case end in a conviction?
.....
.....

[C11 - other counties] Do you have cases in any other Tennessee county? Each county needs its own filing.
.....
.....

[C12 - court file ever existed] Did a court case, a court file or any previous court action ever exist for this matter - were you arraigned, did you appear, were you given a court date or a case number? If nothing ever reached the court, a different route applies and it carries a fee.
.....
.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under T.C.A. Sec. 40-32-106(a)(1); T.C.A. Sec. 40-32-106(a)(2); T.C.A. Sec. 40-32-102; T.C.A. Sec. 40-32-102(d); T.C.A. Sec. 40-32-102(e); T.C.A. Sec. 40-32-110; T.C.A. Sec. 40-6-204(b).

DATE ..... SIGNATURE OF PETITIONER .....

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield
MAILING ADDRESS: 1188 Upper Tallahatchie Crossing Road, Apartment 14B, Fort Saint Clairsville 39501-2214
TELEPHONE: (228) 555-0199 ext. 4417
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NO COST STATEMENT - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the no cost statement component prescribed by the committed route contract.

ROUTE DIRECTIONS

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
- Add T.C.A. Sec. 40-6-204(b) to participant education: a person being charged with a crime must be informed that if the charges are dismissed or nolle prossed, or no charges are filed, they are entitled on request to removal and destruction of all public records without cost. Participants often do not know this was said to them. The current text of Sec. 40-6-204 could not be retrieved from an official Tennessee source on 2026-08-06, so the packet names the right and its statutory home without quoting the provision.
- The court certifies to the TBI before entry where a certificate is required, and forwards the order within 30 days. On this route no certificate is required unless the case came through diversion.

FILING AND AFTER ORDER INSTRUCTIONS - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Free expunction of a non-conviction record by petition, T.C.A. Sec. 40-32-106(a).

Created by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608 effective 2026-03-25. All public records of a person charged with a misdemeanour or felony must, upon petition by that person to the court having jurisdiction in the previous action, be removed and destroyed without cost to the person where the charge was dismissed other than by diversion completion, a no true bill was returned, the person was arrested and released without being charged, a nolle prosequi was entered, a verdict of not guilty was returned, or on the section's further grounds including qualifying implied-consent dismissals, abatement by death, mistaken identity and racial-justice-protest convictions. Subsection (a)(2) extends the same no-cost treatment to a successfully defended order of protection and to expired bonds under Sec. 38-3-109. There is no waiting period. The TBI certificate under Sec. 40-32-102(c) is not required for a Sec. 40-32-106 expunction unless the expunction resulted from successful completion of pretrial or judicial diversion. Under Sec. 40-32-110 expunction restores the person, in contemplation of law, to the status occupied before arrest, indictment, information, trial and conviction, and under Sec. 40-32-102(e) the expunged records are confidential and unlawful release is a Class A misdemeanour.

WHERE IT GOES

The county criminal, circuit or general sessions court having jurisdiction in the previous action Confirmed on 2026-08-06 by direct inspection of both Tennessee AOC form indices: the self-help forms page publishes only divorce and order-of-protection forms, and the full forms-and-publications inventory covers appellate, divorce, general sessions civil, mediation, non-IV-D child support, order of protection, parenting plan and trial court forms, plus licensing forms. No expunction form appears in either. This is a negative finding established by inspection of the authoritative index, not by failure to search.
Venue: Statewide statute with originating-court venue. The petition goes to the court having jurisdiction in the previous action - the county criminal, circuit or general sessions court where the case originated. A person with cases in several counties files separately in each. There is no statewide participant form, so what varies locally is the clerk's own paperwork: the AOC directs filers to check with the court clerk because separate forms may be required for multiple charges.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

Fee as recorded: None. Section 40-32-106(a)(1) requires the records to be removed and destroyed without cost to the person, and the general assembly's stated intent is that no fee ever be charged where the charge was dismissed for a reason other than successful diversion completion. Fee waiver as recorded: Not applicable on this route - no fee is charged. Where a clerk nonetheless assesses court costs on the underlying case, the AOC indicates those may be waivable, but no mechanism or form is identified.

WHO MUST BE SERVED

Service as recorded: Through the clerk. The participant does not effect service. Notice as recorded: The clerk serves the petition on the district attorney general in the ordinary course. The district attorney may

respond.

WHAT THE RECORD SAYS YOU MUST KNOW

- Confirm the statutory citation with the county clerk or district attorney general before every filing. Chapter 32 was reorganized by Public Chapter 268 of 2025, effective 2025-04-24, and codified by Public Chapter 608, the 2026 Code Bill, effective 2026-03-25. Clerks and published guidance may still use the pre-reorganization numbering: the Tennessee AOC's own expunction page is titled to say updated information is coming to reflect changes to T.C.A. Sec. 40-32-101 and still reasons from that section, which since 2025-04-24 has been nothing but a definitions section. A generated petition citing the wrong section is a rejection risk either way, so the packet is built to carry the current citation with the superseded one noted, and instructs the participant to confirm before filing.
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WHEN TO STOP AND GET HELP INSTEAD OF FILING

- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
- Federal, military, tribal or out-of-state records, which Tennessee expunction does not reach.
- Immigration consequences, and any security-clearance question.
- Any question that turns on whether the county clerk uses the pre-2025 or the reorganized section numbering.
- Any count in the case resulted in a conviction, which routes to the redaction analysis.
- The dismissal followed completion of a diversion programme, which routes to the diversion tracks.
- The participant is being asked to pay for this route, which the statute says is free.
- Whether any court case, court file or previous court action ever existed is disputed or cannot be established. LegalEase does not adjudicate that question; the participant is handed off to an attorney, and where the answer is that nothing reached the court the route is tn_arrest_no_court_record rather than this one.

THE PAGES IN THIS SET

- tn_nonconviction_petition-petition-1: the composed petition, on this route's own statutory ground (Clear a charge that did not end in a conviction)

NO COURT HISTORY ROUTING - CLEAR A CHARGE THAT DID NOT END IN A CONVICTION

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS COMPONENT COVERS

This is the no court history routing component prescribed by the committed route contract.

ROUTE AND SCOPE DIRECTIONS

- Expunction is not automatic. A dismissed charge or a completed diversion stays on background checks until a petition is filed. This is the most common Tennessee misunderstanding and the packet leads with it.
- No reach to federal records; a diversion guilty plea may remain visible on clearance checks.
- Narrowed by the integrated Tennessee 2026 route inventory decision. This route no longer reaches an arrest for which the court with jurisdiction has no history within its records; that population is governed by T.C.A. Sec. 40-32-109 and routes to tn_arrest_no_court_record. The distinction is material to the participant in three ways: a different statutory vehicle, a mandatory clerk's fee where this route is free, and a clerk record-search and certification step that has no analogue here. The two mechanisms are not merged.
- Any dispute with the district attorney general about eligibility, or any indication the office will oppose.
- Any other conviction anywhere on the record, including federal and out-of-state convictions that would be ineligible in Tennessee.
- Unpaid court costs, fines or restitution, which mean the sentence is not complete.
- Any DUI, sexual offence or registration matter.
- Any domestic violence or child-victim offence.
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